



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 21 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11685
(FIFTH REVISION)

EXPIRATION DATE: APRIL 30, 20000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. **GRANTEE:** Members of the American Pyrotechnics Association
Chestertown, MD.
(See Appendix A of this exemption for a list of
APA members; Appendix B for other holders;
Appendix C for NFA members who have been granted
party status to this exemption.)
2. **PURPOSE AND LIMITATION:** This exemption authorizes the
transportation in commerce of Division 1.3 and 1.4 display
fireworks with igniters (electric matches) attached to
either the fuse or the lift charge. This exemption provides
no relief from any regulation other than as specifically
stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-
180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Part 173.54(1).
5. **BASIS:** This exemption is based on American Pyrotechnics
Association's (APA) application dated April 8, 1998
submitted in accordance with 49 CFR 107.109.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description - proper shipping name	Hazard Class/ Division	ID Number	PG
Fireworks (display)	1.3G	UN0335	II
Fireworks (display)	1.4G	UN0336	II

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7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - As required in 49 CFR 173.62.
- b. MARKING Outside packaging must be marked with the EX number assigned to the fireworks (not the igniter) and DOT-E 11685.

8. SPECIAL PROVISIONS:

- a. Fireworks (with igniters attached) covered by this exemption are authorized to be transported only by private motor carrier from place of a firework manufacture or a firework display operator's facility to a firework display site or a storage facility associated with a display site.
- b. Both the fireworks and the igniters must be separately approved and assigned EX numbers in accordance with 49 CFR 173.56.
- c. Report (salute) shells, as defined in APA 87-1, exceeding 3 inches in diameter or containing more than 70 grams (2.5 ounces) of detonating powder may not have igniters attached and are not authorized to be transported under this exemption.
- d. The igniter must be certified by the manufacturer to be thermally stable at 150 degrees Centigrade for 24 hours.
- e. The igniter must be rated by the manufacturer to have a "no fire current" of not less than 0.20 amperes (200 milliamperes) i.e. the match head will not ignite when a current of less than 0.20 amperes is passed through it.
- f. The igniter must be securely attached to the fuse or the lift charge of the firework so as to prevent significant movement of the igniter.
- g. When the igniter is placed directly into the "lift charge" of a firework, it must have a "shroud" over the match head composition.
- h. The leg wires of the igniter must be shorted at all times during transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmt employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

5/21/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA
PO: sln

AMERICAN PYROTECHNICS ASSOCIATION**APPENDIX A****FULL MEMBERS**

A & W SALES COMPANY	P.O. Box 1, Muncy, PA 17756
ABC FIREWORKS INC.	Rt. 4, Box 104-5, McAlester, OK 74501
ACME FIREWORKS SALES, INC.	48 North 450 East Rt. 30 Valparaiso, IN 46383
ADD FIRE INC.	P. O. Box 530673, Miami Shores, FL 33153
ADVANCED IMPORTS, INC.	P.O. Box 9627, Wichita, KS 67213
ALAMO FIREWORKS, INC.	P.O. Box 18264, San Antonio, TX 78218-0264
ALONZO FIREWORKS DISPLAY, INC.	12 County Rd., #75 Mechanicsville, NY 12118
ALPHA-LEE ENTERPRISES, INC.	4111 FM 2351, Friendswood, TX 77546
AMERICAN EAGLE FIREWORKS INC.	901 N. Larch Street, Lansing, MI 48906
AMERICAN FIREWORKS CO.	P.O. Box 394, Hudson, OH 44236
AMERICAN FIREWORKS CO., INC.	7601 W. Hwy 70 Durant, OK 74701
AMERICAN FIREWORKS COMPANY, INC.	9035 N. Highway 61, Walls, MS 38680
AMERICAN PROMOTIONAL EVENTS, INC.	P.O. Box 1318, Florence, Alabama 35631
AMERICAN PROMOTIONAL EVENTS, INC.	14111 Freeway Dr, Santa Fe Springs, CA 90670
AMUSEMENT BROKERS, LTD.	1875 Branigan Rd., Beloit, WI 53511
ARKANSAS PYROTECHNIC PRODUCTIONS, INC.	P.O. Box 873, N. Little Rock, AR 72115
ARROWHEAD FIREWORKS CO., INC.	P.O. Box 16928, Duluth, MN 55816
ATLAS ADVANCED PYROTECHNICS, INC.	P.O. Box 498, Jaffrey, NH 03452
ATLAS ENTERPRISES, INC.	6601 Nine Mile Azle Rd., Fort Worth, TX 76135
ATLAS IMPORTERS, INC.	Rt. 4, Highway 501 South, Marion, SC 29571
ATOMIC FIREWORKS INC. OF ARKANSAS	P.O. Box 1150, West Memphis, AR 72303
B. J. ALAN COMPANY, INC.	P.O. Box 3, Columbiana, OH 44408
BARTOLOTTA'S FIREWORKS COMPANY, INC.	P.O. Box 5, Genesee Depot, WI 53127
BOOM BOOM PRODUCTIONS	P.O. Box 1234, Hayfork, CA 96041
CASCADE DISTRIBUTING CO., INC.	2038 Birch Dr., N.W. Grand Rapids, MI 49504
C T INTERNATIONAL ENTERPRISE CORP.	P.O. Box 896, Pearl River, NY 10965
CELEBRATION FIREWORKS CO., INC.	5860 N. Michigan Rd., Indianapolis, IN 46208
CENTRAL KENTUCKY FIREWORKS CO.	4895 Faulkirk Lane, Lexington, KY 40515
CENTRAL MISSOURI FIREWORKS, INC.	P.O. Box 481, Moberly, MO 65270
CLASSIC FIREWORKS BY EVENTS, INC.	60 West Court, Mandeville, LA 70471
CONSIGNED SALES, INC.	11905 Grandview Road, Grandview, MO 64030
COONIE'S EXPLOSIVES AND BLACK POWDER INC.	P.O. Box 2062, Hobbs, NM 88240
CORNELLIER FIREWORKS CO. LTD.	105 Dearborn Street, Beloit, WI 53511
DAVEY FIRE, INC	7311 Greenhaven, Sacramento, CA 95831

DE LA MARE ENGINEERING, INC.	1908 First Street, San Fernando, CA 91340
EAGLE FIREWORKS, INC.	Route # 1, Box 55 U , Marietta, OH 45750
ELKTON SPARKLER CO., INC.	Box F, North East, MD 21901
ENTERTAINMENT FIREWORKS, INC.	P.O. Box 7160 Olympia, WA 98507-7160
F & S COMPANY, INC.	4500 Tower Rd. SW, Albuquerque, NM 87121
FAMILY FIREWORKS	1001 Evans Rd, Gas City, IN 46933
FIRESIDE FIREWORKS	2720 W. 5 Mile, Caledonia WI 53108
FIREWORKS BY GRUCCI, INC.	One Grucci Lane, Brookhaven, NY 11719
FIREWORKS IMPORTING INC.	18013 NW Diamond Ct., Parkville, MO 64152
FIREWORKS OF ALABAMA, INC.	P.O. Box 340, Adamsville, AL 35005
FIREWORKS OVER AMERICA	6597 W. Independence Dr, Springfield, MO 65802
FIREWORKS PRODUCTIONS, INC.	F.O. Box 571, Northeast, MD 21901
FIREWORKS PRODUCTIONS OF ARIZONA.	2980 N. 73rd St., Scottsdale, AZ85251
FIREWORKS SPECTACULAR, INC.	P.O. Box 1491, Pittsburg, KS 66762
FIREWORKS UNLIMITED OF NORTH CAROLINA	674 US Hiway 158 East, Yanceyville, NC 27379
FIREWORKS WEST INTERNATIONAL	P.O. Box 294, Logan, UT 84321
GALAXY FIREWORKS INC.	204 E. Martin Luther King Blvd. Tampa, Florida 33603
GOEX, INC.	1002 Springbrook Ave. , Moosic, PA 18507
GOLDEN GATE FIREWORKS INC	360 Post St. Suite 705, San Francisco, CA 94108
GRAND FIREWORKS MFG. CO.	3046 Wolf Run Road, Cuba, NY 14727
GULF COAST FIREWORKS	8161 Rushing Road, Denham Springs, LA 707
HAMBURG FIREWORKS DISPLAY INC.	4300 Logan-Lancaster Rd., Lancaster, OH 43130
HUISKY TRADING CO., LTD.	64-47 213 Street. Bayside, NY 11364
HUMMEL CROTON INC.	10 Harmich Rd., South Plainfield, NJ 07080
IMPERIAL ENTERPRISES, INC.	840 South Union Rd., Dayton, OH 45427
INFINITY VISIONS, INC.	2111 Blarney Place, SE Bellevue, WA 98004
INTERNATIONAL FIREWORKS MFG. CO.	P.O. Box 6., Douglassville, PA 19518
ISLAND FIREWORKS COMPANY, INC.	N 735 825th St., Hager City, WI 54014
J & M DISPLAYS INC.	18064 170th Avenue, Yarmouth, IA 52660
JAKE'S FIREWORKS INC.	2311 A. West 4th Street, Pittsburg, KS 66762
KELLNER'S FIREWORKS INC.	RD #1, Box 113, Harrisville, PA 16038
KEYSTONE FIREWORKS & SPECIALTY SALES CO.	P.O. Box 338, Dunbar, PA 15431
L.W. LOYD CO., INC.	P.O. Box 190, South Pittsburg, TN 37380
LAKE COUNTRY FIREWORKS	1007 County Road # 8, Farmington, NY 14425
LANTIS FIREWORKS, INC.	1301 W. 1st Street, Sioux City, IA 51103
LANTIS FIREWORKS AND LASERS	P.O. Box 491, Draper, UT 84020
LEGION FIREWORKS CO., INC.	90 Chelsea Road, Wappingers Falls, NY 12590

For: EXEMPTION DOT-E 11685

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LEW'S FIREWORKS INC.	Box 455 , Watertown, SD 57201-2023
LIBERTY ISLAND DISTRIBUTORS, INC.	P.O. Box 986, Lancaster, PA 17608
LIDU AMERICAN COMPANY	P.O. Box 217, Elkton, MD 21922
LONGHORN MANUFACTURING CO., INC.	P.O. Box 6060, Roswell, NM 88201
LUNA TECH, INC.	148 Moon Drive, Owens Cross Roads, AL 35763
MARYLAND STATE SPECIALTY PRODUCTS	P.O. Box 736, North East, MD 21901
MELROSE PYROTECHNICS, INC.	P.O. Box 302 , Kingsbury, IN 46345
MID AMERICA DISTRIBUTORS, INC.	P.O. Box 1628, LaVergne, TN 37086
MID-SOUTH IMPORTS, INC.	1204 Hwy 321 North, Lenoir City, TN 37771
MILLER FIREWORKS COMPANY INC.	501 Glengary Road, Holland, Ohio 43528
MPA, INC.	P.O. Box 546, Lone, CA 95640
MR. G'S FIREWORKS	P.O. Box 976, San Benito, TX 78586
NEELEY SALES CO., INC.	P.O. Box 523, Greenwood, SC 29648
NEPTUNE WHOLESALE CO., INC.	P.O. Box 398 , Dania, FL 33004
NEW JERSEY FIREWORKS MFG. CO. INC.	P.O. Box 217, Elkton, MD 21922
NICHOLSON'S WHOLESALE FIREWORKS	6800 FM , 1390 Kaufman, TX 75142
NIGHT MAGIC, INC.	P.O. Box 778 New Carlisle, IN 46552-0778
NORTH CENTRAL INDUSTRIES	P.O. Box 2623, Muncie, IN 47307-0623
NORTHSTAR FIREWORKS DISPLAYS	P.O. Box 414, Montpelier, Vermont 05601
NOSTALGIA PYROTECHNICS, INC.	119 South Street, Osco, IL 61274
PERFORMANCE PYROTECHNIC ASSOCIATES, INC.	10476 Sunset Drive, DittmerMO63023
PERK'S FIREWORKS, INC.	1410 Dickerson Road, Nashville, TN 37207
PERSELL INTERNATIONAL	P.O. Box 3205, Oak Brook, IL 60522-3205
PLAINS WHOLESALE FIREWORKS CO.	P.O. Box 6368, Lubbock, TX 79493
PRECISION PYROTECHNICS INC.	64606 Hwy 41, Pearl River, LA 70452
PRECOCIOUS PYROTECHNICS	4420 278th Ave., N.W., Belgrade, MN 56312
PYRO PRODUCTS, INC.	10476 Sunset Drive, Dittmer, MO 63023
PYRO SHOWS, INC.	P.O. Box 1406, LaFollette, TN 37766
PYRO SPECTACULARS, INC.	P.O. Box 2329, Rialto, CA 92377
PYRODYNE AMERICAN CORPORATION	P.O. Box 1436, Tacoma, WA 98401
PYROTECNICO	P.O. Box 149, New Castle, PA 16103
PYROTEX, INC.	3216 Beltline Rd. #610, Dallas, TX 75234
R & S MARKETING	P.O. Box 1222, Bozeman, MT 59715
R. BROWN & COMPANY	6716 Rattlesnake Drive, Missoula, MT 59801
RED ROCKET FIREWORKS CO. IN.	41118 E. I-55 Service Rd, Ponchatoula, LA 70454
REICHENBACH FIREWORKS CO.	815 High Ridge Drive, Billings, MT 59105
REMOTE EFFECTS SYSTEMS	4785 Dakota Street, SE, Prior Lake, MN 55372

RICH BROTHERS CO.	P.O. Box 1185, Sioux Falls, SD 57101
ROCKINGHAM FIREWORKS MFG. & DISPLAY CO.	P.O. Box 277, Seabrook, NH 03874
ROZZI, INC.	P.O. Box 5, Loveland OH 45140
S & N DISPLAY FIREWORKS	P.O. Box 823, Lincoln, IL 62656
SALISH FIREWORKS	815 South March Point Rd, Anacortes, WA 98221
SCHNEITTER FIREWORKS AND IMPORTING CO.	P.O. Box 547, St. Joseph, MO 64502
SERVICE CHEMICAL, INC.	2651 Penn Ave. Hatfield, PA 19440
SIX FLAGS FIESTA TEXAS	P.O. Box 690290, San Antonio, Texas
SOONER FUNDS UNLIMITED	P.O. Box 171, New Castle, OK 73065
SOUTH CAROLINA DISTRIBUTORS, INC.	1406 Cherokee Falls Road, Cherokee Falls, SC
SPIELBAUER FIREWORKS CO., INC.	220 Roselawn Blvd., Green Bay, WI 54301
SPRINGFIELD FIREWORKS INC.	490 St. Rt. 103, Bluffton, OH 45817
STANDARD FUSEE CORPORATION	P.O. Box 1047, Easton, MD 21601
STARR DISPLAY FIREWORKS, INC.	P.O. Box 74, Walcott, ND 58077
STATELINE SPARKLER OF W. VA. LTD.	Rte. 2 Box 320, Bunker Hill, W.V. 25413
STONE MOUNTAIN PYRO	5387 Manor Drive, Stone Mountain, GA 30083
STONEBRAKER-ROCKY MOUNTAIN FIREWORKS	5401 N. Federal Blvd., Denver, CO
STOWERS, INC.	3211 Hwy 61 East, Luttrell, TN 37779-2043
SUNNY INTERNATIONAL CO. INC.	P.O. Box 552, Rockville MD 20851-0552
SUNSET FIREWORKS LTD.	10476 Sunset Drive, Dittmer, MO 63023
TENNESSEE-ALABAMA STATE LINE FIREWORKS	P.O. Box 30, South Pittsburg, TN
TEXAS FIREWORKS COMPANY	P.O. Box 2277, Silsbee, TX 77656
THE FIREWORKS STORE	3656 Sparrow Pond, Akron, OH 44333
THUNDER FIREWORKS	P.O. Box 42057, Tacoma, WA 98443
TPL, INC.	3921 Academy Parkway North, NE Albuquerque, NM 87109-4416
UNITED FIREWORKS INC.	1683 Galvez Ave., San Francisco, CA 94124
VICTORY FIREWORKS	440 W. Cairns St., Ellsworth, WI 54011
VIRTUA NOVELTY/HOLIDAY NOVELTY	198 Suffolk Ave., Staten Island, NY 10314
WALD AND COMPANY, INC.	P.O. Box 319, Greenwood, MO 64034-0319
WALT DISNEY WORLD	Main Gate Office Complex, Lake Buena Vista, FL 32830-1000
WEST SALEM FIREWORKS CO. INC.	P.O. Box 242, West Salem, OH 44287
WESTERN FIREWORKS	P.O. Box 426, Aurora, OR 97002
WESTERN DISPLAY FIREWORKS, LTD.	P.O. Box 932, Canby, OR 97013
WESTERN ENTERPRISES, INC.	P.O. Box 60, Carrier, OK 73727
WILKINSON FIREWORKS CO., INC.	P.O. Box 111, Bullard, TX 75757
WINCO FIREWORKS, INC.	10520 Barkley, Suite 1, Overland Park, KS 66212

WOLVERINE FIREWORKS DISPLAY CO., INC.
YOUNG EXPLOSIVES CORPORATION
ZAMBELLI FIREWORKS MFG. CO., INC.
ZENITH PYROTECHNOLOGY
ZENITH SPECIALTIES, INC.

205 W. Seidlars Road, Kawkawlin, MI 48631
P.O. Box 18653, Rochester, NY 14618
P.O. Box 1463, New Castle, PA 16103
25 Jefryn Blvd. Deer Park, NY 11729
P.O. Box 383, Clinton, MO 64735

ASSOCIATE MEMBERS

AN PING COUNTY FIREWORKS GENERAL FACTORY
BEI HAI FIREWORKS & GENERAL FACTORY
CARAMURU PYROTECHNIC INDUSTRY,
CHINA NATIONAL FIREWORKS CO. LTD.
CHINA PANDA FIREWORKS MANUFACTURER LTD.
DAVEY BICKFORD S.N.C.
FORMEX INT., LTD
GLORIOUS COMPANY ,
HOP KEE PYROTECHNICS LTD.
HOWARD AND SONS PYROTECHNICS,
INTER-ORIENTAL PYROTECHNIC LTD.,
LIDU EXPORT FIREWORKS FACTORY
MARUTAMAYA CO., LTD.
MEN SHUN(China) FIREWORKS CO., LTD.
NICO FEUERWERK Gmb
PIROFANTASIA Y MULTIMEDIA, S.I.
PO SING FIRECRACKER FACTORY LTD.
S. MANTSUNA & CO., LTD,
SAN TAI FIREWORKS INDUSTRIAL CO., LTD.,
SHIU FUNG FIREWORKS CO., LTD.,
SYD HOWARD FIREWORKS INTERNATIONAL PTY. LTD.
THE BROTHERS PYROTECHNICS, INC.
WECO PYROTECHNISCHE FABRIK
YUEN LOONG HONG FIRECRACKERS LTD.,
YUNG-FENG FIREWORKS CO. LTD.

Beijing, CHINA
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AUSTRALIA
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Jiangxi, CHINA
Tokyo, JAPAN
Guangdong Province CHINA
Remscheid, GERMANY
Valencia, SPAIN
HONG KONG
Tokyo , JAPAN
Chia Yi Hsien, TAIWAN
Kowloon, HONG KONG
AUSTRALIA
GUANGXI, CHINA
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Kowloon, HONG KONG
Chiayi, TAIWAN

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APPENDIX C

List of the National Fireworks Association, Inc., members that NFA has supplied to us.